was typically on the existing landowner, leading to allegations of overreach. The government highlighted several examples of disputed claims across states like Karnataka, Bihar, Kerala and Tamil Nadu, where entire villages or thousands of acres were unilaterally declared as waqf properties, creating hardships for non-Muslim landowners and farmers.

Union minister for parliamentary affairs and minority affairs Kiren Rijiju stated that Section 40 was being exploited by a small group for personal gain. "That is why waqf property increased by lakhs," he said. Under the new law, when disputes arise between government claims and waqf claims, the property will be presumed to belong to the government until the designated officer determines otherwise. This fundamental shift in decision-making power has fuelled accusations of state overreach into religious affairs.

Legal scholars highlight the amendment's removal of waqf boards' exemption from the Limitation Act. Previously, these boards could reclaim encroached properties regardless of time elapsed; now, they must file claims within the standard 12-year window—a change that may benefit long-term encroachers. Financial governance also receives substantial attention in the amendments. The mandatory annual contribution from waqf institutions to waqf boards has been reduced from 7 per cent to 5 per cent, allowing more funds to remain available for charitable purposes. Institutions earning over Rs 1 lakh annually must now undergo audits by state government-appointed auditors. The legislation also separates Muslim-created trusts from the definition of waqf, ensuring that trusts established under other laws aren't automatically considered waqf properties. For women, the amendments introduce stronger inheritance protections in family waqf arrangements, with special provisions for widows, divorced women and orphans.

The legislation has a digitisation timeline—all waqf properties are to be registered on a central portal within six months. As implementation begins, it will be plunged into a plethora of immediate challenges with properties that have complex or incomplete documentation. Legal challenges appear inevitable—the AIMPLB has already announced plans to contest the amendments in court. The Delhi High Court is already considering a challenge to the constitutional validity of the Waqf Act itself. Challenges notwithstanding, the government frames the amendments as necessary reforms addressing widespread mismanagement and corruption. ■

BJP-AIADMK PACT

Electoral Expediency

By Amarnath K. Menon

The bitter break-up from September 2023 is past, the BJP and the All India Anna Dravida Munnetra Kazhagam (AIADMK) are coming together again in Tamil Nadu. The imperative: to try and dislodge the DMK-led Secular Progressive Alliance in the 2026 assembly election. BJP leader and Union home minister Amit Shah's March 25 meeting with AIADMK general secretary Edappadi K. Palaniswami (EPS) laid the contours for the tie-up. The hope is the NDA will be able to do what it did in Andhra Pradesh when the BJP aligned with the Telugu Desam Party and swept the poll last summer.

The two sides, though, will have to get past the nastiness of the past one-and-a-half years. State BJP chief K. Annamalai's barbs about the late CM C.N. Annadurai, one of the founding fathers of the Dravidian movement, and his comments such as the AIADMK under EPS being a "betting agent party" will be hard to live down, so too the latter's comment about the saffron party being "waste luggage". But both sides know that it's a now-or-never situation with the DMK getting more entrenched by the day.

Signs of a possible rapprochement surfaced in recent weeks when Annamalai suddenly referred to Palaniswamy as "brother" in an interaction

WELCOME BACK Union home minister Amit Shah with AIADMK chief E.K. Palaniswami (right) in Chennai, Mar. 25



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